Salient Features of Indian Constitution

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Introduction

✓ Inspired by the best features of other constitutions (like the British, American, Irish, etc.).

✓ One of the longest written constitutions in the world.

✓ Adopted on 26 January 1950:
Marks the official enforcement of the Constitution.

✓ Upholds democracy, equality, secularism, justice, and rule of law.

✓ Ensures fundamental rights and duties for all citizens.

✓ Accounts for India's rich cultural, social, and historical diversity.

✓ Designed to suit the needs of a multi-lingual, multi-religious, and multi-ethnic society

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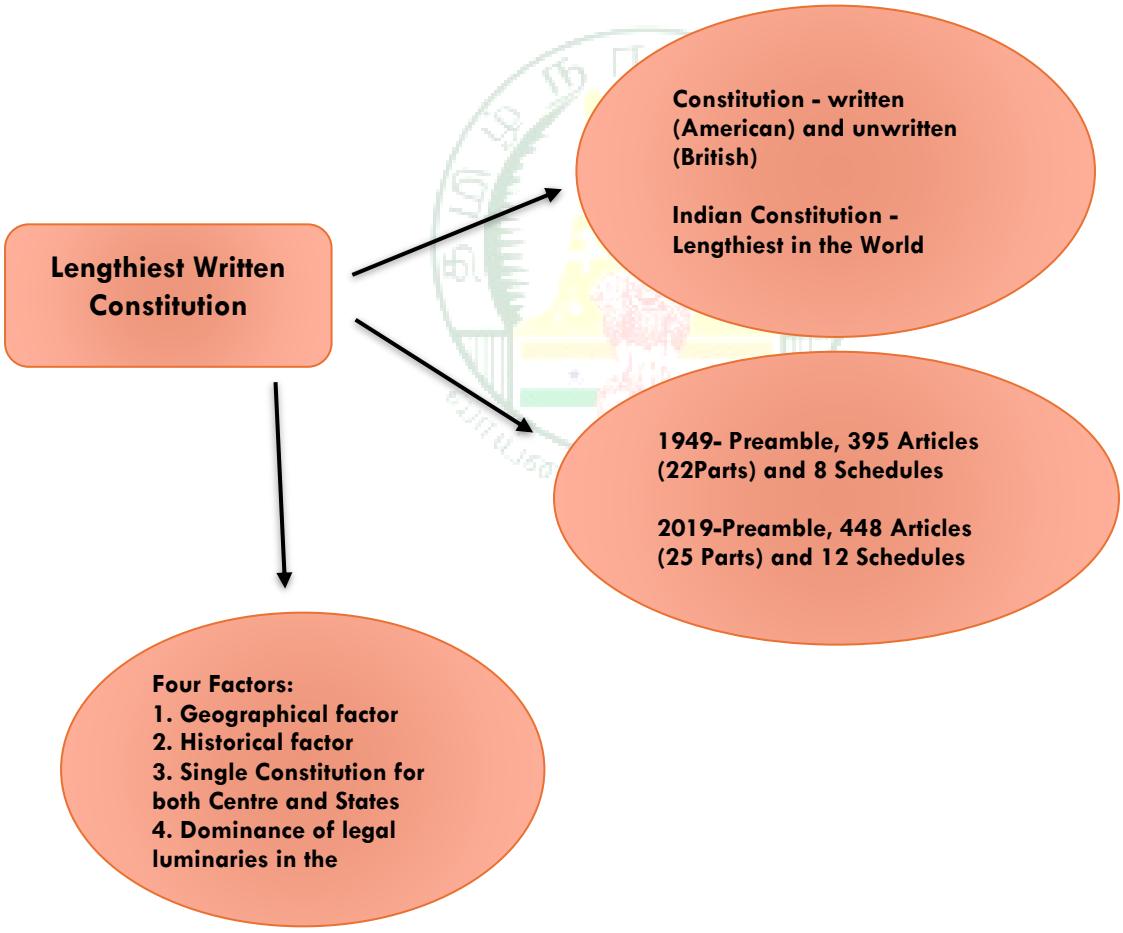
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TNPSC GROUP IV – POLITY QUICK REVISION

1. Lengthiest Written Constitution
2. Blend of Rigidity & Flexibility
3. Federal System with Unitary Bias
4. Parliamentary Sovereignty &Judicial Supremacy
5. Fundamental Rights
6. Directive Principles of StatePolicy
7. Fundamental Duties
8. Secular State
9. Universal Adult Franchise
10. Independent judiciary
11. Single Citizenship
12. Independent Bodies



Drawn from various Sources

Government of India Act, 1935	British Constitution	US Constitution	Canadian Constitution
• Federal Scheme • Office of Governor • Judiciary • Public Service Commissions • Emergency Provisions • Administrative Details	• Parliamentary Government • Rule of Law • Legislative Procedure • Single Citizenship • Cabinet System • Prerogative Writs • Parliamentary Privileges • Bicameralism	• Fundamental Rights • Independence of Judiciary • Judicial Review • Impeachment of President • Removal of SC & HC Judges • Vice-President's Post	• Strong Centre (Federalism) • Residuary Powers to Centre • Governor's Appointment by Centre • Advisory Jurisdiction of SC

Irish Constitution	Australian Constitution	Soviet Constitution (USSR)	French Constitution
• Directive Principles of State Policy (DPSP) • Nomination to Rajya Sabha • President's Election Method	• Concurrent List • Freedom of Trade & Commerce • Joint Sitting of Parliament	• Fundamental Duties • Ideal of Justice (Social, Economic, Political)	• Republic • Ideals of Liberty, Equality, Fraternity

South African Constitution	• Amendment Procedure • Rajya Sabha Election
Japanese Constitution	• Procedure Established by Law
Weimar Constitution (Germany)	• Suspension of Fundamental Rights during Emergency

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Blend of Rigidity and Flexibility

Constitution-Rigid (American) and Flexible (Britis

. Indian Constitution - neither rigid nor flexible of both

Federal System with Unitary Bias

. Federal system of Government

. Two government, division of powers, independent judiciary, bicameralism

•Unitary or non-federal features:
•· Single Constitution & citizenship, appointment of state governor by the Centre
•**Article 1 : India as A 'Union of States'**
•. Indian Federation is not the result of an agreement by the states
•. No state has the right to secede from the federation

Parliamentary From of Government

. Opted - British parliamentary system of Gov. than American Presidential

. Parliamentary system - Westminster model

•**Features:**
•. Presence of nominal and real executives
•. Majority party rule; Responsibility of the executives to the legislature
•. Leadership of the PM or CM
•. Dissolution of the lower house

Integrated and Independent Judiciary

Judicial system - Integrated as well as independent

. Supreme Court at top in the country

. High Court at the state level, Subordinate courts



Directive Principles of State Policy

•'Novel feature' of Indian Constitution (Part IV)
•. Three broad categories - Socialistic, Gandhian and
•liberal - intellectual
•. Establish a welfare state in india



Fundamental Rights

•Part -III of Indian Constitution
•6 fundamental rights
•Suspended during National Emergency except rights
•guaranteed by Article 20 & 21



Fundamental Duties

•. Added by 42md Constitutional Amendment Act of 1976
•. Swaran Singh Committee
•. Originally 10 duties
•. 86th Constitutional Amendment Act of 2002 added one more

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A Secular State

Secular added to preamble by 42"d Constitutional

Amendment Act of 1976

Article 14, 15, 16, 26, 27, 28, 29, 30 and 44

Equal respect to all religions

Universal Adult Franchise

. Elections to the Lok Sabha and the state legislative assemblies

. Citizen above age 18 has right to vote

. 61s Constitutional Amendment Act of 1988

. Voting age reduced to 18 from 21 years in 1989

Single Citizenship

. Indian constitution is federal and a dual polity

single citizenship

. Same political and civil rights

Emergency Provisions

. Enable President- meet any extraordinary situation

effectively

. National Emergency - Article 352

. State Emergency - Article 356 or Article 365

. Financial Emergency - Article 360

Three-tier Government

. 73"d Constitutional Amendment Act of 1992

. Panchayats (rural local government)

. new Part IX and new Schedule 11

74 Constitutional Amendment Act of 1992

. Municipalities (urban local government)

. new Part IX-A and new Schedule 12

Criticism of the Constitution

. A borrowed Constitution

. A Carbon copy of the 1935 Act

. Un-Indian or Anti-Indian

. An Un-Gandhian Constitution

· Elephantine Size

. Paradise of the Lawyers